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Case Number: 24STCV01254 Hearing Date: September 11, 2026 Dept: 414

24STCV01254 Kids Empire Pomona, LLC v.

Royal Oak, L.P., et al.

Friday, September 11, 2026

(1)

[TENTATIVE] ORDER DENYING DEFENDANT RELIABLE PROPERTIES' MOTION FOR PROTECTIVE ORDER (Res. No. -4062) AND DENYING REQUEST FOR SANCTIONS

(2)

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO AND COMPLIANCE WITH FIFTH SET OF INSPECTION DEMANDS TO DEFENDANTS; REQUEST FOR SANCTIONS [Res. No. -4819]

(3)

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR PRODUCTION PROPOUNDED TO DEFENDANTS; REQUEST FOR SANCTIONS [Res. No. -4356]

I. BACKGROUND

Plaintiff

Kids Empire Pomona, LLC ("Kids Empire") leased commercial premises from Defendants Royal Oak, L.P., Twin Flower Properties, L.P., Clear Mountain Properties, L.P., Skymeadow Properties, L.P. and Reliable Properties ("Landlord Defendants") pursuant to a written Lease Agreement ("Lease Agreement"). Plaintiff alleges David Gold of Reliable Properties fraudulently misrepresented that the amount of common area maintenance fees ("CAM Fees") due per month

would be \$4,795. Plaintiff alleges after it commenced occupancy in June 2021, Landlord Defendants informed Plaintiff that the monthly CAM charge was \$8,096.90.

On

January 17, 2024, Plaintiff filed complaint alleging (1) fraud; (2) rescission (mistake); and (3) declaratory relief. On

May 22, 2026, Defendant Reliable Properties filed a Motion for Protective Order. On August 28, 2026, Plaintiff filed an opposition to the Motion for Protective Order. On September 3, 2026, Defendant filed a reply.

On

July 22, 2026, Plaintiff filed (1) a Motion to Compel Further Responses to First Set of Requests for Production (Res. no. 4356) and (2) a Motion to Compel Further Responses to and Compliance with Fifth Set of Inspection Demands (Res. no. 4819). On August 28, 2026, Defendants filed oppositions to both Motions to Compel Further Responses. On September 3, 2026, Plaintiff filed a consolidated reply as to both Motions to Compel Further Responses.

II. ARGUMENTS

A. Motion for Protective Order filed
on May 22, 2026

Defendant

Reliable Properties moves for a protective order under Code of Civil Procedure sections 2031.060 and 2017.020. and asks that the Court issue a protective order limiting the electronically stored information it must produce in response to Plaintiff's RFP Nos. 13-18 and Plaintiff's Request to Inspect Email Accounts issued on April 23, 2026. Defendant argues parties agreed after an IDC with the Court on October 8, 2025, that Defendant would run a keyword search of terms relating to CAM, common area maintenance, services provided, and synonyms of the services provided. Defendant argues it understood the search terms would only relate to the specific property leased by Plaintiff and at most, the shopping center in which that property was located.

Defendant

argues Plaintiff has unreasonably refused to limit the keyword searches to the leased premises within a reasonable time period. Defendant suggests that any

keyword search of its emails be limited in time to two years (instead of ten years) focusing on the one subject shopping center in which Plaintiff's unit is located.

Defendant

argues Plaintiff's proposed search would also be unreasonably time consuming and expensive. Defendant argues the cost of the proposed document review would be approximately \$150,000 to more than \$400,000. Defendant asks that the Court impose sanctions in the amount of \$25,155.95.

B. Opposition filed August 28, 2026

Plaintiff argues that discovery concerning Defendants' handling of CAM expenses at other properties is relevant because one of the central issues in this action is why Plaintiff's CAM expenses increased so dramatically after execution of the Lease. Plaintiff points out that the cause of that increase may have arisen from decisions or practices affecting multiple properties, not merely the subject Shopping Center. By way of example, Plaintiff identifies evidence that Defendants procured no-deductible insurance policies covering multiple properties and passed the increased costs through to tenants as CAM expenses. Communications concerning such decisions may not identify Plaintiff's property by street address or otherwise expressly reference the subject Shopping Center yet could still bear directly on the reasons Plaintiff's CAM charges increased and on Defendants' intent in providing the substantially lower CAM estimate during lease negotiations. Plaintiff therefore contends that restricting the search from the outset to communications expressly tied to the subject Shopping Center risks excluding otherwise relevant evidence concerning Defendants' CAM practices and the reasons for the increase alleged here. Plaintiff argues Defendant failed to meet and confer prior to filing the motion for protective order. Plaintiff argues Defendant violated the parties' stipulation when it refused to perform the keyword search without "proximity" modifiers. Plaintiff argues it has already established that Defendant was withholding documents based on Defendant's document production in a different lawsuit by a different tenant for CAM overcharges.

To

address Defendant's overbreadth concerns, Plaintiff suggested a two-step process to run the search and produce responsive emails. Plaintiff suggested that the unlimited keyword search be run first and a report listing all

responsive documents be generated, a "hit report" listing responsive documents by search term. Plaintiff suggested that modifiers limiting search results would only be applied to those terms that generated an inordinate number of hits. Plaintiff also offered to pay for generation of the hit report.

Plaintiff

argues the searches should not be limited to the shopping center in question. Plaintiff argues the search should not be so limited, because the definition of relevance under Code of Civil Procedure section 2017.010 is broad. Plaintiff argues the reason for the dramatic increase in CAM charges could apply to multiple properties owned by Defendants and emails discussing those reasons may not necessarily contain references to the shopping center in question.

Plaintiff

argues Defendant's bad faith is evidenced by their filing the motion for protective order six days before the scheduled hearing date and after expiration of the statutory deadline. Plaintiff argues Defendant refused to stipulate to a trial continuance despite its conduct necessitating the continuance. Plaintiff argues Defendant should be forced to pay for the entire process of running the keyword search, generating the hit report and reviewing the documents to respond to the discovery.

Plaintiff

asks that the Court impose sanctions against Defendant and defense counsel.

C.

Reply filed September 3, 2026

Defendant

argues the keyword search it has proposed is reasonable. Defendant maintains the agreement arrived at during the October 2025 IDC focused on the subject shopping center, not every retail property owned by Defendant, and the list of search terms would be created by reference to the list of tenants and service providers at the subject shopping center. Defendant argues it was Plaintiff who impermissibly deviated from the parties' agreement by refusing to limit the search to the subject shopping center.

Defendant

argues its motion for protective order was filed in response to Plaintiff's Fifth Set of Inspection Demands (RFP Nos. 13-18), which were not limited in

time or scope. Defendant argues the parties' agreement to limit production to a keyword search of any kind justifies granting this motion for protective order. Defendant argues it has already conducted the proposed unlimited keyword search as to one of its custodians and the results were inordinately high, just as Defendant suspected it would be. Defendant argues it would be more efficient to run a proximity-limited search first and then if need be, proposed additional discovery or increasing the proximity modifiers.

Defendant also denies purposefully concealing documents. Defendant argues any failure to produce responsive documents was inadvertent. Defendant argues any disparity in the hit report from employee Hubie Byrnes' inbox and those emails produced in discovery is attributable to the hit report covering all emails up to the present.

Defendant argues its price estimates to perform the keyword search, generate the hit report and review the documents is not exaggerated. Defendant argues it is not required to use the third-party suggested by Plaintiff to perform these tasks.

III. LEGAL STANDARDS

"When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code of Civ. Proc., §2031.060, subd. (a).)

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (1) That all or some of the items or categories of items in the demand need not be produced or made available at all..." (Code of Civ. Proc., §2031.060, subd. (b).)

The

scope of discovery is broad but it is not unlimited. (Haniff v. Supr. Ct. (2017) 9 Cal.App.5th 191, 205-206.) “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person.” (Code Civ. Proc., § 2017.020, subd. (a).)

IV. DISCUSSION

A. Procedural Issues

The underlying discovery at issue are the Requests for Production Nos. 13-18 (Set One). The discovery was served on September 13, 2024. (Hayes Dec. ISO Plaintiff’s Opposition, Ex. 1.) Defendant served responses on November 12, 2024. (Tate Dec., ¶9.) Defendant filed supplemental responses to the RFPs (Set One) on March 14, 2025. (Id. at ¶10.) Defendant produced 48,000 pages of documents in response to the RFPs on November 13, 2025. (Id. at ¶11.) After parties met and conferred on the supplemental responses and production, Defendant served further supplemental responses on May 21, 2025. (Id. at ¶13.)

Parties then engaged in an IDC on October 8, 2025, and agreed to utilize mutually agreed-upon keyword searches to narrow the universe of documents Defendant would be required to review. (Hayes Decl., ¶ 8, Ex. 6, pp. 494–495 [IDC Tr. 21:28–22:17].) The parties were to meet and confer further regarding the specific search terms and implementation of that procedure. Their subsequent discussions ultimately resulted in a disagreement concerning the scope and manner of conducting the keyword searches.

On April 23, 2026, Plaintiff served its Fifth Set of Inspection Demands formally seeking the disputed ESI search. (Id. at ¶ 21, Ex. 6.) Defendant responded with a meet-and-confer communication on May 18, 2026, and thereafter filed the present motion for protective order.

The Court finds the meet-and-confer requirement satisfied. The parties engaged in

extensive discussions concerning this discovery, participated in an IDC, and continued their efforts after disagreement arose concerning implementation of the keyword-search procedure. Under these circumstances, Defendant sufficiently complied with Code of Civil Procedure sections 2016.040 and 2031.060 before filing the motion.

B. Defendant Has Not Established Good
Cause for the Requested Protective Order

The scope of discovery is broad and encompasses matters relevant to the subject matter involved in the pending action or reasonably calculated to lead to the discovery of admissible evidence. (Code of Civ. Proc., § 2017.010.) The Court may nevertheless limit discovery where the burden, expense, or intrusiveness clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.020, subd. (a).) On a motion for protective order, Defendant bears the burden of establishing good cause for the requested restriction.

1. IDC Stipulation

At the IDC, the parties agreed to utilize mutually agreed-upon keyword searches as a means of identifying potentially responsive electronically stored information. The IDC discussion, however, was directed to CAM-related discovery concerning the subject Shopping Center, including CAM information relating to other tenants at that location. The Court does not read the IDC transcript as reflecting an agreement that Plaintiff could obtain CAM discovery concerning tenants at every property owned or managed by Defendants. At the same time, the parties did not expressly agree upon the precise mechanics by which the keyword search would be limited, including whether proximity modifiers or other property-specific restrictions would be applied before the initial search was run.

The present dispute therefore is not properly characterized as Defendant attempting to rewrite an agreement that plainly authorized an unrestricted search of all properties. Rather, the parties agreed upon a keyword-search process within the context of the subject Shopping Center, but did not resolve how that process would be implemented if particular search terms generated communications

concerning other properties. Defendant contends that property-specific limitations were implicit in the IDC discussion; Plaintiff contends that the search terms should first be run without such limitations and then refined based upon the resulting hit counts. The transcript supports Defendant's position that the IDC discussion generally concerned CAM discovery relating to the subject Shopping Center, but it does not establish that the parties agreed to property-specific search restrictions or Defendant's subsequently proposed proximity protocol.

The

parties' conduct following the IDC is consistent with that narrower reading. On October 21, 2025, defense counsel described the compromise as one under which, "instead of looking for every document responsive to the overbroad requests my client would instead run search terms." (Hayes Decl., ¶ 9, Ex. 7, p. 516.) That statement confirms the parties' agreement to use keyword searches as a substitute for unrestricted document-by-document review, but it does not resolve whether every search term had to be paired from the outset with a property-specific modifier. Thereafter, Plaintiff proposed search terms on December 22, 2025. When defense counsel expressed concern that those terms might generate an excessive volume of ESI, Plaintiff proposed obtaining a hit report first so the parties could determine which particular terms actually required refinement. According to Plaintiff's evidence, defense counsel agreed during the January 20, 2026, conference to consult with his e-discovery vendor concerning whether such a report could be generated. (Hayes Decl., ¶ 11.) Defendant later proposed, on February 23, 2026, applying proximity modifiers before generation of the hit report. (Hayes Decl., ¶ 12, Ex. 9.)

Upon

consideration of the IDC transcript, the parties' subsequent conduct, and the present record, the Court concludes that Defendant reasonably understood the IDC discussion to concern CAM discovery relating to the subject Shopping Center rather than every property owned or managed by Defendants. The Court therefore rejects any broader interpretation of the stipulation.

2. Plaintiff has established a
sufficient basis for the initial search without proximity modifiers

With

that said, Defendant has not established good cause for imposing its proposed proximity restrictions before the initial search is conducted. The IDC did not resolve that particular

implementation issue, and Plaintiff has separately made a sufficient showing that some communications concerning multi-property CAM practices may be relevant even if they do not expressly identify the subject Shopping Center. The appropriate course is therefore to enforce the agreed keyword-search process within that clarified scope and address overbreadth through the staged hit-report and refinement procedure.

The

Court also finds Plaintiff has sufficiently established the relevance of the discovery beyond communications expressly identifying the subject Shopping Center. Plaintiff alleges that Defendants represented during the negotiation of the September 2018 Lease that monthly CAM charges would be approximately \$4,795 but subsequently charged approximately \$8,096.90 after Plaintiff commenced occupancy. Plaintiff is entitled to discovery reasonably calculated to reveal why the CAM estimate provided during lease negotiations differed so substantially from the CAM charges subsequently imposed.

That

inquiry is not necessarily confined to documents expressly mentioning Plaintiff or the subject Shopping Center. Evidence concerning Defendants' calculation, estimation, allocation, budgeting, or treatment of CAM expenses at other properties during the relevant period could bear upon whether the CAM figure provided to Plaintiff reflected an ordinary estimating error, a particular methodology or business practice, or an intentional understatement designed to induce execution of the Lease. Such evidence may also bear upon intent and the credibility of Defendants' explanation for the discrepancy. The Court need not determine at the discovery stage whether such evidence will ultimately be admissible. Plaintiff has demonstrated a sufficient factual nexus to permit discovery directed toward determining whether such evidence exists.

3. Burden and Overbreadth

Nor

does the potential breadth of the search require the Court to determine prospectively which search terms are too broad or which proximity modifiers should be imposed before any hit-count information is available. Plaintiff has proposed a practical mechanism for addressing that concern: run the search terms without proximity modifiers, generate a hit report, and then refine those terms that actually produce an inordinate number of results. Plaintiff's evidence establishes that it repeatedly proposed that procedure and ultimately

offered to bear the expense of generating the initial hit report. Although the Court does not find that this particular two-stage procedure was itself part of the IDC stipulation, the Court finds it a reasonable means of implementing the agreed keyword-search process while addressing Defendant's legitimate concern that some of the search terms may prove overly broad. The federal ESI authorities cited by Plaintiff likewise recognize the utility of obtaining hit-count information and testing proposed terms before determining whether particular search terms require modification.

Nor

is the Court persuaded that the number of anticipated keyword hits, standing alone, establishes undue burden sufficient to require Defendant's proposed proximity restrictions at the outset. Code of Civil Procedure section 2031.060 authorizes a protective order upon a showing of "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," and section 2017.020 requires limitation where the burden, expense, or intrusiveness clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Defendant has established that an unrestricted search may generate a substantial number of hits, but that does not establish that Defendant must review and produce every resulting document or that the appropriate solution is to impose Defendant's proposed restrictions before the parties know what the searches actually produce.

Importantly, Plaintiff does not

propose that Defendant review and produce every document generated by the initial keyword search without further limitation. Plaintiff proposes a two-stage procedure. Defendant will first run the search terms and generate a hit report. The parties will then use the actual results to identify search terms producing an inordinate number of hits and meet and confer regarding appropriate refinements. Plaintiff has offered to bear the expense associated with generating the initial hit report.

That

procedure substantially addresses Defendant's asserted burden while preserving the possibility that the initial search will identify relevant communications that Defendant's proposed proximity modifiers would exclude. As discussed above, the Court agrees with Defendant that the IDC did not authorize unrestricted discovery concerning every tenant at every property owned or managed by Defendants. Plaintiff has nevertheless independently established that certain communications concerning multi-property CAM practices may be

relevant to the claims here, even though those communications may not expressly identify the subject Shopping Center. Imposing a property-specific proximity requirement at the outset could therefore exclude relevant information before the parties have any basis to determine the practical effect of the limitation.

The

hit-report procedure also avoids requiring the Court to speculate in advance about which search terms or communications will ultimately warrant further review. The breadth of a particular search term can be evaluated more intelligently after the parties know whether that term generates dozens, hundreds, or tens of thousands of hits and, where appropriate, the nature of those hits. The potentially large universe of electronically stored information therefore does not, on this record, establish that Defendant's proposed proximity modifiers must be imposed before the initial search is conducted.

The

Court is likewise unpersuaded that Defendant's proposed approach should be adopted merely because it may be more efficient. Efficiency is relevant to the burden analysis, but it does not independently define the permissible scope of discovery. The relevant questions are whether the information sought falls within the scope of permissible discovery and whether Defendant has demonstrated that the burden, expense, or intrusiveness of the proposed procedure clearly outweighs the likelihood that it will lead to the discovery of admissible evidence. Plaintiff has established a sufficient basis for conducting the initial search without Defendant's proposed proximity modifiers, and Defendant has not demonstrated that generating the initial hit report—particularly where Plaintiff has offered to bear that expense—creates undue burden or expense warranting the protective order requested.

The

Court does, however, find a temporal limitation appropriate. The alleged misrepresentation occurred in connection with negotiation of the September 2018 Lease. Discovery beginning two years before those negotiations provides a reasonable period from which Plaintiff may investigate Defendants' CAM practices preceding the alleged representation, including whether the CAM estimate supplied during the negotiations was consistent with Defendants' contemporaneous practices. To the extent CAM-related decisions or practices affecting the subject Shopping Center were made on a multi-property basis, relevant communications concerning those decisions are not excluded merely because they also concern other properties. Discovery thereafter is relevant to

Plaintiff's allegation that the CAM charges ultimately imposed substantially exceeded the amount represented during the negotiations and to Defendants' explanation for that increase. Accordingly, the initial keyword search shall encompass the period beginning September 1, 2016, through the present.

Defendant

shall conduct the agreed keyword searches without the proximity modifiers proposed in Defendant's February 23, 2026, email and shall generate a hit report identifying the results by search term and custodian. After generation of the hit report, the parties shall promptly meet and confer regarding any search terms producing an inordinate number of results and whether reasonable refinements are appropriate. The Court is not presently ordering Defendant to conduct substantive review or produce every document identified by the initial search. The purpose of the initial search is to provide the parties with objective information from which reasonable refinements, if necessary, can be made rather than imposing speculative restrictions before the universe of potentially responsive documents is known. Defendant's Motion for Protective Order is therefore DENIED.

C. Sanctions

"Except as provided in subdivision

(i), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code of Civ. Proc., §2031.060, subd. (h).)

Although

Defendant does not prevail on the Motion for Protective Order, the Court finds Defendant acted with substantial justification in seeking judicial resolution of the parties' genuine dispute concerning the scope of the October 2025 IDC agreement and the burden associated with the proposed searches. The parties' competing interpretations of the agreement and the appropriate scope of ESI discovery were reasonably subject to dispute. Accordingly, the requests for sanctions are DENIED.

D. Conclusion

Defendant's Motion for Protective

Order is DENIED. Defendant's Request for Sanctions is DENIED.

(2) PLAINTIFF'S MOTION TO COMPEL

FURTHER RESPONSES TO AND COMPLIANCE WITH FIFTH SET OF INSPECTION DEMANDS TO DEFENDANTS; REQUEST FOR SANCTIONS [Res. No. -4819]

I. ARGUMENTS

A. Plaintiff's Motion

Plaintiff

moves to compel compliance and for further responses to its Fifth Set of Inspection Demands pursuant to Code of Civil Procedure section 2031.240, which is also the subject of Defendant's Motion for Protective Order discussed above. Plaintiff argues Defendant was obligated to comply with the Fifth Set of Inspection Demands based on parties' stipulation entered into at the October 8, 2025, IDC. Plaintiff argues Defendant instead filed a Motion for Protective Order without first meeting and conferring. Plaintiff asks that the Court order Defendant to comply with section 2031.240 in responding to the Fifth Set of Inspection Demands. Plaintiff asks that the Court order Defendant to perform the search of the 12 custodians' email accounts based on the 78 keywords identified by Plaintiff without proximity limitation. Plaintiff asserts the same arguments raised in Plaintiff's opposition to the Motion for Protective Order.

B. Opposition filed on August 28, 2026

Defendant

denies refusing to comply with the stipulation to do a keyword search of its emails. Defendant argues it disagreed with Plaintiff's characterization of the terms of the stipulation. Defendant argues it never agreed to keyword search the emails without regard to the location. Defendant argues its understanding from the October 8, 2025, IDC was that the Shopping Center and the Premises were at issue only and any keyword search would therefore be limited to those locations and the tenants and service providers at those locations. Defendant argues Plaintiff's refusal to limit the keyword search with proximity modifiers impermissibly expands the discovery to cover other properties owned by Defendant, which are not relevant to this action.

Defendant

argues Plaintiff has not established good cause for the discovery sought. Defendant raises the same arguments raised in support of its Motion for Protective Order.

C. Consolidated Reply filed on
September 3, 2026

Plaintiff

argues that it filed two Motions to Compel Further on July 22, 2026, and as to both Motions Plaintiff only seeks two orders: (1) an order governing the keyword search submitted on August 28, 2026, with Plaintiff's opposition to Defendants' motion for protective order and (2) an order requiring Defendants to strictly comply with Code of Civil Procedure section 2031.240. Plaintiff refers the Court to its opposition to the Motion for Protective Order for its reply arguments.

II. LEGAL STANDARDS

Pursuant

to Code of Civil Procedure sections 2031.310, subdivision (a), parties may move for a further response to interrogatories where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code of Civ. Proc., §2031.310, subd. (a).) The moving party is entitled to sanctions if it prevails, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code of Civ. Proc., §2031.310, subd. (c).)

Where

a party is seeking to compel further responses to requests for document production, the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (Code of Civ. Proc., §2031.310, subd. (b)(1); *Kirkland v. Supr. Ct.* (2002) 95 Cal.App.4th 92, 98 ("Once good cause was shown, the burden shifted to Kirkland to justify his objection"); *Glenfed Develop. Corp. v. Supr. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established by the moving party, the burden then shifts to the responding party to justify any objections made to document disclosure. (*Hartbrodt v. Burke* (1996, 2nd Dist.) 42 Cal.App.4th 168,

172-174.)

Code

of Civil Procedure section 2031.240 sets forth the standards for responses to requests for production. Section 2031.240 provides:

“(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

(2) It is the intent of the Legislature to codify the concept of a privilege log as that term is used in California case law. Nothing in this subdivision shall be construed to constitute a substantive change in case law.” (Code of Civ. Proc., §2031.240.)

III. DISCUSSION

A. Timeliness

Plaintiff

moves to compel further responses to the RFPs (Set Five) served on April 23, 2026. Defendants served objections on May 22, 2026. (Hayes Dec., Ex. 3.) Defendants agreed to extend the deadline to file any motions to compel to these responses to July 22, 2026. (Id. at Ex. 11.) The motion was timely filed on July 22, 2026.

B. Request for Judicial Notice

Plaintiff's

Request for Judicial Notice is GRANTED as to Exhibit 4 and DENIED as to Exhibits 6 and 15. Exhibit 4 is a copy of the complaint in 23PSCV01848 and judicially noticeable under Evidence Code sections 451 and 452. Exhibits 6 and 15 are transcripts from the October 8, 2025, IDC and from a hearing in 23PSCV01848. Neither documents falls within any category of judicially noticeable under Evidence Code sections 451 and 452.

C. Plaintiff Has Established Good Cause to Compel Further Responses

For

the same reasons discussed in connection with the protective order, Plaintiff has established good cause for the discovery sought. The alleged discrepancy between the CAM amount represented during the lease negotiations and the amount subsequently charged supplies a sufficient factual basis for discovery concerning Defendants' CAM practices, calculations, and communications during the relevant period, including practices involving other properties that may bear upon Defendants' intent, methodology, or explanation for the CAM figure provided to Plaintiff.

The

Court's ruling does not rest upon Plaintiff's broader interpretation of the October 2025 IDC agreement. As discussed above, the IDC concerned CAM discovery relating to the subject Shopping Center, including other tenants at that location, and did not constitute an agreement authorizing discovery concerning every property owned or managed by Defendants. The IDC likewise did not resolve whether Defendant could impose its proposed proximity modifiers before conducting the initial keyword search. Plaintiff has independently established

good cause for conducting the initial search without those modifiers because certain communications concerning multi-property CAM practices may bear upon the claims in this action even though they do not expressly identify the subject Shopping Center.

Plaintiff's

proposed staged procedure provides the appropriate mechanism for addressing overbreadth. The initial search will identify the number and distribution of hits. Search terms producing an inordinate number of results may thereafter be refined through the meet-and-confer process. This permits refinement based upon actual information rather than assumptions concerning what the searches may produce or what information may ultimately prove relevant.

Plaintiff's

motion is therefore GRANTED IN PART to the extent it seeks implementation of the keyword-search procedure described above. Defendant shall conduct the search for the period September 1, 2016, through the present and generate the initial hit report. The parties shall thereafter meet and confer regarding appropriate refinement of search terms producing an inordinate number of hits and Defendant's resulting review and production obligations. Any production or withholding of responsive documents following that process shall comply with Code of Civil Procedure section 2031.240, including the provision of an appropriate privilege log for responsive documents withheld on grounds of privilege or work product.

D. Sanctions

The

Court finds the parties' disagreement concerning the scope and implementation of the IDC agreement was substantially justified. The requests for monetary sanctions are DENIED.

E. Conclusion

Plaintiff's

Motion to Compel Further Responses to the Fifth Set of Inspection Demands and Compliance with Code of Civil Procedure section 2031.240 is GRANTED IN PART as set forth above. Plaintiff's Request for Sanctions is DENIED.

(3) PLAINTIFF'S MOTION TO COMPEL

FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION; REQUEST
FOR SANCTIONS (Res No. -4356)

Plaintiff's

Motion to Compel Further Responses to Plaintiff's First Set of Requests for Production (Res No. 4356) seeks the exact same relief as Plaintiff's Motion to Compel Compliance and Further Responses to Plaintiff's Fifth Set of Inspection Demands (Res No. 4819) and relies on the exact same briefing. Defendant's opposition is also identical to the opposition to Plaintiff's Motion regarding the Fifth Set of Inspection Demands. Plaintiff filed a consolidated reply as to both Motions to Compel Further Responses, confirming that it is seeking identical relief under both motions.

Plaintiff's

Motion to Compel Further Responses to the First Set of Requests for Production is GRANTED IN PART for the same reasons and subject to the same search protocol, temporal limitation, meet-and-confer process, and production requirements stated in connection with Plaintiff's Motion to Compel Compliance with the Fifth Set of Inspection Demands. Plaintiff's Request for Sanctions is DENIED.